

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: MR. A.A.A. (hereinafter, the claimant) on November 9, 2022, filed a complaint with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, VODAFONE). The reasons for the complaint are as follows:

The claimant states that a person has contacted him to demand an amount of 30 euros; as they have made recordings with the defendant, impersonating his identity "to pass the validations."

He indicates that he obtained this information from a commercial advisor of VODAFONE who has sent his personal data to the person who is claiming the amount to impersonate his identity.

Along with his complaint, he provides screenshots of WhatsApp showing the conversation held with the person who contacted him to collect 30 euros for passing some validations by impersonating his identity, as well as three audio files with voice recordings sent via WhatsApp by that person.

He also provides screenshots of another WhatsApp conversation reflecting the hiring with a supposed distributor of VODAFONE.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to VODAFONE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 27, 2022, as recorded in the acknowledgment of receipt in the file.

On February 1, 2023, a response was received by this Agency indicating that:

1) The hiring had occurred by telephone "and that it had been perfected by [the claimant's] authorization to the contract sent by SMS to the claimant's phone number"; they also state that "at no time did [the claimant] express his disagreement with the contracts carried out, supposedly, without his consent."

2) They consider that what occurred is unrelated to the entity's activity, which has declared the hiring as non-fraudulent "as there is evidence of the knowledge and contractual consent provided by [the claimant]."

3) There are no breaches or unauthorized accesses to the claimant's data in the systems of the defendant, claiming that the personal data to which the third party would have had access "could have been obtained from multiple sources unrelated to [the defendant]," and that the claimant was not a customer of the entity at the time the events occurred.

4) They attached a copy of the letter sent to the claimant, dated February 1, 2023, detailing the actions taken regarding the claimed facts, confirming that there are currently no products or services contracted.

The report provided states "SMS Sent" on 02/11/2022, with the claimant's details, phone ending in 828, regarding a portability of the line ending in 092 from NEO-SKY, the portability of the line ending in 580 from YOIGO, indicating in the SMS that to accept the portability, he must reply YES to the SMS or enter the attached link and click Accept.

There are also 3 reminders sent by SMS to the same number every 20 minutes, with the text "Remember that you must respond with the word YES to the initial SMS received or by clicking ACCEPT on the attached link."

This number ending in 828 is also noted in the Report as the claimant's contact number in a request classified as "Type: Commercial Error" and "Opening Code: Deception (invented offer)" with the following annotation: "claims that when hiring, they offered him a new line for an additional 15 euros to the one he has in the systems / it is reviewed in the contract, it only includes one line / but he indicates that they told him he could hire an additional new line within the contract at his hiring, it does not

indicate this / a request is opened to verify the possibility of a new registration with a discount for the customer."

THIRD: On February 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

Given that the telephone line to which the confirmation SMS was sent (with the number ending in 828) according to the previously related evidence is not that of

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the claimant, but rather from the third person who contacted the claimant via WhatsApp to demand the 30 euros. In the inspection proceedings, the defendant party was requested to provide documentary evidence of having verified the identity of the applicant for the contracts (a portability of a mobile phone line ending in 580 from YOIGO, the portability of a fixed phone line ending in 092 from NEOSKY, the activation of a fixed phone line, as well as a portability of a TV and fiber service).

In this regard, the representatives of the defendant party provided recordings of calls (audio.WAV and audio2.WAV), verifying that the first refers to a call to cancel the fixed and fiber service, in which the caller indicates that they had a portability and since their mobile service had been canceled, they needed to call back to cancel the fixed and fiber services. The operator informs that the fiber installation has already been completed and that a charge will be generated, to which the interlocutor agrees. At no point does the claimant mention that the contracting was fraudulent or involved impersonation.

The second recording refers to a contract dated November 2, 2022, in which the operator requests the ID as well as the first and last names for the portability of the line ending in 580 from YOIGO, and the applicant who calls provides this information. The defendant party indicates that this recording was made from the line that was to be ported (ending in 580), thus providing additional assurance regarding its authenticity. They provide a screenshot with the registration of the line number and the date and time of the call.

They also state that: "On the other hand, regarding the other calls made by the claimant to Vodafone, this representation must indicate that they were not recorded, and therefore, the recording of the same cannot be provided. This is due to the fact that, as has already been stated in previous files, telephone calls received by Vodafone's Customer Service are only recorded randomly (except in cases where the contract is finalized by voice recording, which are recorded in any case) and for the purpose of quality control of the service provided to the customer, as is expressly informed to those interested in carrying out any procedure via the telephone channel. As this Agency is aware, the number of requests and procedures that Vodafone manages by telephone makes it practically unfeasible to record and preserve all the transactions carried out by telephone with the Customer Service of this entity, which is why Vodafone only records a representative number of the total transactions carried out by telephone in order to evaluate the quality of customer service or to verify the contracting made by a new customer."

They provide a copy of the contract signed between the claimant and the defendant party through certified signature via a One Time Password (OTP), indicating that in this way they subscribed to all the aforementioned contracts. In this regard, Vodafone has been able to verify that the signed contract was sent to the claimant's email address, while the notification of the processing of the portability of the lines was sent to their phone number ending in 580 (of the claimant).

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On the other hand, it is verified that this contract includes the phone number ending in 828 as a contact number.

They indicate that in addition to all of the above, the postal address for the installation of the contracted fiber service matches the one provided by the claimant, as can be verified.

On the other hand, they indicate that when a party requests the portability of any of their lines, the Donor Operator must verify whether the provided data matches the information registered in their systems. In the event of a match, the Receiving Operator will not impose any impediment to the portability of the lines; however, if any of the data does not correspond with what is recorded in their systems, the Donor Operator will be responsible for communicating this error and halting the portability.

Documentation proving the origin of the data of the phone number to send the contract signature code via SMS (number ending in 828), which is the number of the third party who allegedly impersonated the claimant, has also been requested, along with information on who entered this number into the systems to proceed with sending the validation code.

In this regard, the representatives of the responding party state that “as previously indicated, the contract is signed using a digital signature (OTP) sent to the provided number, and in order to double-check the information and conditions of the contract, a copy of it is sent to the email address [of the claimant]. This copy includes both the identifying information of the claimant and the number from which the signature was made. In light of this fact, the [claimant] does not respond with any type of denial or modification to the contracted services. It is not until a week later that the claimant requests the cancellation of the contracted services due to a counteroffer from another operator, as specified by the Agent in the interaction.”

It has been verified that there is an interaction in the systems of the responding entity dated 03/11/2022 12:50:36, of the type incoming call, in the name of the claimant from the line ending in 580 (of the claimant) in which it states:

“Reason for the call: CLIENT REQUESTS CANCELLATION OF FIBER DUE TO COUNTEROFFER
Agent's management: CLIENT WITH FIXED PORTABILITY IN PROGRESS, WE PUT A2 AS THE PORTABILITY HAD NOT YET BEEN INITIATED BUT THE OT HAS
WE MAKE THE CANCELLATION RECORD BUT DO NOT LAUNCH OT FOR DISCONNECTION AS THE FIXED LINE IS IN PENDING CHANGE STATUS
THE CANCELLATION MUST BE MADE RETROACTIVELY TO 03/11/2022.”

The representatives of the responding party indicate that following the receipt of this information request, they have proceeded to investigate the facts reported by the claimant again, concluding that the incident did not occur as a result of fraudulent actions unrelated to the claimant.

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In this regard, following the investigations carried out, the Fraud Department of the entity has concluded that the contracts were not entered into fraudulently, given that the signed contract was sent to the email address recognized as belonging to the claimant, as well as the notification regarding the portability process of the requested lines was sent to the contact phone number provided by the claimant in their complaint, a number ending in 580. Furthermore, the installation postal address for the contracted fiber service matches the one provided by the claimant in their complaint.

Consequently, the representatives of the responding party cannot rule out that it was the claimant themselves or a third party from their environment who provided the personal information, something entirely outside the control of the responding party, with the custody of their personal data and access credentials being the responsibility of the claimant themselves. They understand that what occurred falls outside the scope of responsibility of the responding party since the interested parties have the responsibility to properly safeguard their personal data, with only the appropriate definition of the procedures, systems, controls, and security measures applicable based on the criticality of the processing ensuring the correct identification of the data subject being within the control of my client.

In any case, they indicate that internal processes are being reviewed to ensure compliance with the defined Security Policies or to introduce necessary changes when deemed appropriate. Specifically, they are working on the continuous improvement of:

- Review of internal processes to ensure compliance with the Security Policies and verification controls that have been defined and incorporated, both in face-to-face and telephone channels.
- Periodic reinforcement of communication regarding the Security Policies and verifications defined by Vodafone for the management of different contracts, which must be applied by agencies, commercial stores, and agents.
- Sending periodic communications to the face-to-face and telephone channels, as well as to the logistics operator, where detected risk scenarios, their characteristics, and behavioral patterns are alerted to prevent new cases.
- Application -if applicable- of the existing Penalty Policy for agents or distributors who carry out any contract without having requested the documentation or who carry out any management without following all the steps defined in the Security Policy.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Likewise, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction."

7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States."

In the present case, VODAFONE carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

III

Lawfulness of Processing

Article 6 "Lawfulness of Processing" of the GDPR establishes:

"1. Lawfulness of processing

1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

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b) the processing is necessary for the performance of a contract in which the data subject is a party or for the application at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

The claimant states that a person has contacted him to demand an amount of 30 euros; since they have made recordings with the defendant, impersonating his identity "to pass the validations."

It is important to clarify the facts that occurred; in this case, on November 2, 2022, a fixed line was contracted with fiber installation, as well as a mobile line, both in the same contract and with portability from another operator.

The defendant has provided a copy of the call recording for the portability of the mobile line and has proven that the call was made from the mobile line to be ported; therefore, impersonation is not possible unless the impersonator took possession of the mobile device or the claimant's line.

The defendant has also provided a recording of a call in which the claimant cancels the contracted services, due to a counteroffer, accepting the cost of the fiber installation, which, on the other hand, required entry into his home. He does not mention at any time having suffered fraud in the contracting. On the other hand, it has been proven that during the contracting process, SMS messages were sent to the line ending in 828 (of the alleged impersonator). However, no evidence has been obtained regarding the origin of this data, which appears as contact data of the claimant in the entity's systems, nor of who provided it.

Consequently, from the documentation provided by VODAFONE during the investigation proceedings, no evidence has been obtained that the impersonation was completed, and there is evidence that the contracting was carried out by the claimant or at least from his mobile phone, and that the same claimant canceled it due to a counteroffer, assuming the charges for the installation of fiber, which was installed in his home and without denying the contracting.

IV

Principle of Presumption of Innocence

The principle of presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable way for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and

must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal." The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions. According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute an infraction in the area of data protection due to identity theft, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: PROCEED TO THE FILING of the present proceedings.

SECOND: NOTIFY the present resolution to VODAFONE ESPAÑA, S.A.U. and to the claiming party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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